

Tuni v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 August 2018 · WRIT - C No. 27507 of 2018 · **Writ disposed; relegated to Clause 6.5; disconnection stayed pending that decision.**

HEADNOTE

A writ seeking reconnection, a corrected 1 kW bill and decision of a billing objection was not entertained because a statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 was available for a dispute as to bill correctness. The petitioner was left to approach the appropriate authority within 10 days for a speaking order within 15 days, with supply not to be disconnected meantime if that application was filed in time.

FACTUAL SUMMARY

Tuni petitioned the Allahabad High Court for mandamus to the electricity authorities to connect supply forthwith, to issue a fresh correct bill for 1 kW at a fixed rate of Rs.160 after adjusting amounts already paid, and to consider and decide an objection dated 24 July 2018. Counsel for the petitioner and for the electricity department were heard. The grievance pressed before the Court was the correctness of the bill raised against the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

A dispute as to the correctness of an electricity bill is to be pursued under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the High Court will not entertain a writ while that statutory remedy is available. If the consumer approaches the appropriate authority within the time fixed, the authority is to decide the application by a speaking order, and supply is not to be disconnected pending that disposal provided the application is filed in time. ¶ [unnumbered](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL RAISED AGAINST THE PETITIONER

Left to the Clause 6.5 authority ¶ [unnumbered](#)

NOT DECIDED — ENTITLEMENT TO RECONNECTION AND TO A FRESH 1 KW BILL AT RS.160 AFTER ADJUSTING PAYMENTS ALREADY MADE

Mandamus not granted on merits ¶ [unnumbered](#)